

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DIJENARIO MONDELL WILLIAMS,

Plaintiff(s),

SUMMONS

-against-

INDEX NO.

DETECTIVE MATHEW WRIGHT,
THE CITY OF NEW YORK, "JOHN DOE I"
and "JOHN DOE II" (the names "JOHN DOE" being
fictitious and intended to designate the police officers),

FILED ON:

Defendants(s).

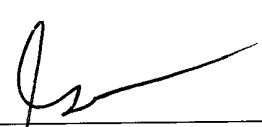
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TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney, within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of the occurrence.

DATED: New York, New York
May 5, 2015

Yours, etc.

By: 
GREG GARBER, ESQ.
Attorney for Plaintiff
60 Madison Avenue - Suite 1005
New York, N.Y. 10010
(212) 779-2740

Defendants' Addresses:
DETECTIVE MATHEW WRIGHT
c/o 40TH PRECINCT
257 Alexander Ave
Bronx, NY 10454

THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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DIJENARIO MONDELL WILLIAMS,

Plaintiff(s),

-against-

INDEX NO.

**VERIFIED
COMPLAINT**

DETECTIVE MATHEW WRIGHT,
THE CITY OF NEW YORK, "JOHN DOE I"
and "JOHN DOE II" (the names "JOHN DOE" being
fictitious and intended to designate the police officers),

Defendant(s).

-----X

Plaintiff, by his attorney, GREG GARBER, ESQ. complaining of the above named
defendants respectfully alleges upon information and belief as follows:

**AS AND FOR A FIRST CAUSE OF ACTION,
PLAINTIFF, DIJENARIO MONDELL WILLIAMS ALLEGES:**

1. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a domestic municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

2. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK owned, operated and controlled a police department known as the New York City Police Department.

3. That at all times hereinafter mentioned, the defendant, DETECTIVE MATHEW WRIGHT was employed by the defendant THE CITY OF NEW YORK to work as a police officer in the New York City Police Department.

4. That at all times hereinafter mentioned, the defendant, "JOHN DOE I" was employed by the defendant THE CITY OF NEW YORK to work as a police officer in the New York City Police Department.

5. That at all times hereinafter mentioned, the defendant, "JOHN DOE II" was employed by the defendant THE CITY OF NEW YORK to work as a police officer in the New York City Police Department.

6. That at all times hereinafter mentioned, the defendant, DETECTIVE MATHEW WRIGHT was acting in the scope of his employment as a police officer for the defendant, THE CITY OF NEW YORK.

7. That at all times hereinafter mentioned, the defendant, "JOHN DOE I" was acting in the scope of his employment as a police officer for the defendant, THE CITY OF NEW YORK.

8. That at all times hereinafter mentioned, the defendant, "JOHN DOE II" was acting in the scope of his employment as a police officer for the defendant, THE CITY OF NEW YORK.

9. Upon information and belief that at all times herein mentioned defendant, DETECTIVE MATHEW WRIGHT was a Police Officer for defendant CITY OF NEW YORK attached to the 40th Precinct, in the County of Bronx, City and State of New York.

10. Upon information and belief that at all times herein mentioned defendant, "JOHN DOE I" was a Police Officer for defendant CITY OF NEW YORK attached to the 40th Precinct, in the County of Bronx, City and State of New York.

11. Upon information and belief that at all times herein mentioned defendant, "JOHN DOE II" was a Police Officer for defendant CITY OF NEW YORK attached to the 40th Precinct, in the County of Bronx, City and State of New York.

12. Upon information and belief that at all times herein mentioned defendant, DETECTIVE MATHEW WRIGHT was a Police Officer of THE CITY OF NEW YORK, assigned to the 40th Precinct, in the County of Bronx, City and State of New York.

13. Upon information and belief that at all times herein mentioned defendant, "JOHN DOE I" was a Police Officer of THE CITY OF NEW YORK, assigned to the 40th Precinct, in the County of Bronx, City and State of New York.

14. Upon information and belief that at all times herein mentioned defendant, "JOHN DOE II" was a Police Officer of THE CITY OF NEW YORK, assigned to the 40th Precinct, in the County of Bronx, City and State of New York.

15. That Police Officer DETECTIVE MATHEW WRIGHT was a person who at the time and place herein mentioned, was a police officer employed by the defendant, THE CITY OF NEW YORK in the performance of his duty and authority.

16. That Police Officer "JOHN DOE I" was a person who at the time and place herein mentioned, was a police officer employed by the defendant, THE CITY OF NEW YORK in the performance of his duty and authority.

17. That Police Officer "JOHN DOE II" was a person who at the time and place herein mentioned, was a police officer employed by the defendant, THE CITY OF NEW YORK in the performance of his duty and authority.

18. Upon information and belief that at all times herein mentioned the defendant, THE CITY OF NEW YORK, its agents, servants, and/or employees trained, managed, supervised, controlled and instructed the aforementioned police officers.

19. That on the 19th day of November, 2014 defendant DETECTIVE MATHEW WRIGHT was on duty and was acting within the scope of his authority as a Police Officer for the defendant, THE CITY OF NEW YORK.

20. That on the 19th day of November, 2014 defendant "JOHN DOE I" was on duty and was acting within the scope of his authority as a Police Officer for the defendant, THE CITY OF NEW YORK.

21. That on the 19th day of November, 2014, defendant "JOHN DOE II" was on duty and was acting within the scope of his authority as a Police Officer for the defendant, THE CITY OF NEW YORK.

22. That on or about the 19th day of November, 2014, plaintiff DIJENARIO MONDELL WILLIAMS was approached, harassed, battered, beaten, assaulted, unlawfully detained, falsely imprisoned and falsely arrested by the aforementioned police officers, while lawfully at the premises known and designated as 367 East 154th Street, Apt. 5B, County of Bronx, City and State of New York.

23. That the plaintiff was falsely arrested and/or imprisoned by the defendant DETECTIVE MATHEW WRIGHT by unlawfully and intentionally menacing, and otherwise touching him without justification, excuse or consent.

24. That the plaintiff was falsely arrested and/or imprisoned by the defendant "JOHN DOE I" by unlawfully and intentionally menacing, and otherwise touching him without justification, excuse or consent.

25. That the plaintiff was falsely arrested and/or imprisoned by the defendant "JOHN DOE II" by unlawfully and intentionally menacing, and otherwise touching him without justification, excuse or consent.

26. That on or about the 19th day of November, 2014, this plaintiff was battered, beaten, assaulted, unlawfully detained, falsely imprisoned and falsely arrested, due to the negligence, culpable conduct, carelessness and recklessness of the defendant, THE CITY OF NEW YORK in failing to properly hire and train its police officers herein, as a result whereof this plaintiff was caused to sustain serious personal injuries.

27. That on or about the 19th day of November, 2014, due to the willful and malicious conduct of defendants, this plaintiff was caused to sustain serious personal injuries.

28. That all of the foregoing occurred solely as a result of the carelessness, recklessness, culpable conduct and negligence of the defendants in failing to properly hire and train its police officers; in that they failed to properly monitor, supervise and control the activities of their police officers and more specifically the police officers named herein; in inadequately and improperly supervising and controlling the activities of their police officers and more specifically the police officers named herein; in negligently and carelessly becoming abusive, belligerent, assaultive, and unruly; in failing to employ competent personnel; in negligently, carelessly and recklessly assaulting, attacking and abusing this plaintiff; in negligently using excessive force; in violating the applicable rules, statutes and ordinances which govern the activities of the defendants, their agents, servants, and/or employees and in otherwise being negligent in the premises.

29. In doing all the acts and things aforesaid defendant, THE CITY OF NEW YORK its agents, servants and/or employees acted negligently in failing to properly hire and train its police officers.

30. That before during and after the aforementioned incident, the plaintiff was injured by the defendants, DETECTIVE MATHEW WRIGHT, "JOHN DOE I" and "JOHN DOE II" by unlawfully and intentionally menacing, and otherwise touching him without justification, excuse or consent.

31. In doing all the acts and things aforesaid defendants acted negligently in failing to use such care in the performance of police duties as reasonable prudent and careful police

officers would have used under similar circumstances.

32. That by reason of the foregoing, the plaintiff was caused to and sustain severe, painful and serious personal injuries in and about his head, limbs and body; became sick, sore, lame and disabled; was caused to suffer contusions, abrasions, lacerations, dislocations and sprains; was caused to suffer a severe shock to his nervous system and certain internal injuries; was caused to suffer and still continues to suffer great physical pain, mental anguish and bodily injuries; was confined to a hospital, bed and home for a long period of time; was compelled to undergo hospital and medical aid, treatment and attention and to expend diverse sums of money for same; the plaintiff was greatly injured both bodily and mentally; has been prevented from engaging in his usual activities for a long period of time, all with attendant losses and since some of said injuries are of a permanent and long lasting nature, and upon information and belief he will continue to suffer continuous pain, suffering, inconvenience, loss of enjoyment of life, and damage in the future.

33. That heretofore, on the 11th day of December, 2014, a verified statement of the plaintiff's claim and notice of intention to sue herein was duly served on THE CITY OF NEW YORK and said verified statement of this plaintiff's claim and notice of intention to sue were so served within ninety (90) days of the happening of this accident as is provided in the Public Authority Law of New York.

34. That said verified statement of plaintiff's claim included, among other things, the name and post office address of the plaintiff's and their attorney, the nature of the claim, the place and manner in which the claim arose and the items of damage for the injuries claimed at the time to have been sustained.

35. That at least thirty (30) days have elapsed since the verified statement of this plaintiff's claim and notice of intention to sue herein referred to was served upon the defendant THE CITY OF NEW YORK and the defendant has failed to make an adjustment of payment thereof and this action has been commenced within one (1) year and ninety (90) days of the cause of action herein alleged had occurred.

36. That on the 5th day of May, 2015, a hearing was conducted by THE CITY OF NEW YORK, pursuant to the General Municipal Law of the State of New York and authorization was given to the defendant, THE CITY OF NEW YORK, to conduct a physical examination of the plaintiff, at its request.

37. That the amount of said damages sustained by the plaintiff as a result of the aforesaid serious personal injuries and pecuniary loss are in a substantial sum of money to be determined by the court and jury.

38. That the amount of said damages sustained by the plaintiff as a result of the aforesaid exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this action.

39. This action falls within one or more of the exceptions set forth in CPLR ss1602.

**AS AND FOR A SECOND CAUSE OF ACTION,
PLAINTIFF DIJENARIO MONDELL WILLIAMS ALLEGES:**

40. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

41. That the defendants, DETECTIVE MATHEW WRIGHT, "JOHN DOE I" and JOHN DOE II" acted in such a manner so as to constitute gross negligence and under such circumstances as to show heedlessness and utter disregard of the result upon the rights and safety of others, and more particularly the plaintiff herein and did so.

42. That the defendants acted deliberately with knowledge of the plaintiff's rights and with the intent to interfere therewith and deliberately with intent to cause serious bodily harm to the plaintiff herein and did so.

43. That defendants violated plaintiff's Constitutional right to be free from the use of excessive force.

44. In doing all the acts and things aforesaid defendants acted negligently in failing to use such care in the performance of police duties as reasonable prudent and careful police officers would have used under similar circumstances.

45. In doing all the acts and things aforesaid defendant, THE CITY OF NEW YORK their agents servants and/or employees acted negligently in failing to properly hire and train its police officers.

46. That by reason of the wanton, reckless and malicious acts by the defendants,

the plaintiff is entitled to punitive damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this accident.

**AS AND FOR A THIRD CAUSE OF ACTION
PLAINTIFF DIJENARIO MONDELL WILLIAMS ALLEGES:**

47. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

48. On the 19th day of November, 2014 defendant police officer DETECTIVE MATHEW WRIGHT arrested, imprisoned and or confined plaintiff, DIJENARIO MONDELL WILLIAMS, and restrained him of his liberty.

49. On the 19th day of November, 2014 defendant police officer "JOHN DOE I" arrested, imprisoned and or confined plaintiff, DIJENARIO MONDELL WILLIAMS, and restrained him of his liberty.

50. On the 19th day of November, 2014 defendant police officer "JOHN DOE II" arrested, imprisoned and or confined plaintiff, DIJENARIO MONDELL WILLIAMS, and restrained him of his liberty.

51. This arrest, imprisonment and/or confinement was made without probable cause, warrant or other legal process and was unlawful, in that no crime had been committed and in that there was no reason or probable cause for belief that plaintiff had committed any crime.

52. In doing all the acts and things aforesaid defendants acted wilfully and maliciously.

53. After having been arrested, plaintiff, DIJENARIO MONDELL WILLIAMS, was held in custody and restrained of his liberty until he was released.

54. That by reason of the foregoing this plaintiff was unlawfully detained.

55. That by reason of the foregoing this plaintiff was restrained without adequate legal justification.

56. Defendants, DETECTIVE MATHEW WRIGHT, "JOHN DOE I" and "JOHN DOE II", acting in the scope of their employment as police officers for the defendant, THE CITY OF NEW YORK, had a legal authority to arrest.

57. Prior to the arrest and/or imprisonment, plaintiff, DIJENARIO MONDELL WILLIAMS, had enjoyed a good reputation in the City of New York, particularly for honesty.

58. That at all times hereinafter mentioned, this plaintiff was conscious of the confinement inflicted upon him and did not consent to the confinement.

59. That at all times hereinafter mentioned, the aforementioned confinement was not privileged.

60. As a result of all the acts of defendants, this plaintiff was greatly humiliated and subjected to mental and bodily distress all to this plaintiff's damage.

61. That defendants violated plaintiff's Constitutional right to be free from the use of excessive force.

62. That defendants violated plaintiff's Constitutional right to be free from false arrest and false imprisonment.

63. That by reason of the foregoing plaintiff, DIJENARIO MONDELL WILLIAMS's civil rights under 42 U.S.C. Section 1983 were violated in that this plaintiff was deprived of his rights, privileges and immunities secured by the Constitution and laws of the United States of America by individuals who, under color of a statute or regulation of a State, caused this plaintiff to be so deprived and other and further violations of plaintiff's rights and privileges secured to him under the Constitutions of the United States and the State of New York.

64. That the amount of said damages sustained by the plaintiff as a result of the aforesaid exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this action.

**AS AND FOR A FOURTH CAUSE OF ACTION
PLAINTIFF DIJENARIO MONDELL WILLIAMS ALLEGES:**

65. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

66. That by their conduct, defendants are liable to plaintiff for having committed malicious prosecution under the laws of the State of New York.

67. That defendants maliciously commenced criminal proceedings against plaintiff and falsely and without probable cause charged plaintiff with violations of the laws of the

State of New York.

68. The commencement and continuation of the criminal proceedings against plaintiff was malicious and without probable cause.

69. That all charges were terminated in plaintiff's favor.

70. That the amount of said damages sustained by the plaintiff as a result of the aforesaid exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
PLAINTIFF DIJENARIO MONDELL WILLIAMS ALLEGES

71. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

72. On the 19th day of November, 2014, this plaintiff was arrested, confined and/or imprisoned.

73. Because of the aforementioned, this plaintiff was subjected to great indignity and humiliation, pain and distress of mind and body, was prevented from attending to his usual business, was subjected to procure services of counsel in his defense, and was injured in his good name and reputation in the community, to this plaintiff's damage.

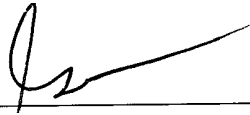
74. That the amount of said damages sustained by the plaintiff as a result of the aforesaid exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this action.

WHEREFORE, plaintiff, DIJENARIO MONDELL WILLIAMS, demands judgment against the defendants on the First Cause of Action in an amount which exceeds the jurisdiction limits of all lower courts which would otherwise have jurisdiction over this action, on the Second Cause of Action in an amount which exceeds the jurisdiction limits of all lower courts which would otherwise have jurisdiction over this action, on the Third Cause of Action in an amount which

exceeds the jurisdiction limits of all lower courts which would otherwise have jurisdiction over this action, on the Fourth Cause of Action in an amount which exceeds the jurisdiction limits of all lower courts which would otherwise have jurisdiction over this action, and on the Fifth Cause of Action in an amount which exceeds the jurisdiction limits of all lower courts which would otherwise have jurisdiction over this action together with interest, costs, and disbursements to herein.

DATED: New York, New York
May 5, 2015

Yours, etc.

By: 

GREG GARBER, ESQ.
Attorney for Plaintiff
60 Madison Avenue - Suite 1005
New York, N.Y. 10010
(212) 779-2740

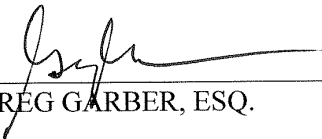
ATTORNEY VERIFICATION

I, the undersigned an attorney admitted to practice in the Courts of the State of New York, state that I am the attorney of record for the plaintiff, DIJENARIO MONDELL WILLIAMS in the within action; I have read the foregoing SUMMONS AND VERIFIED COMPLAINT, and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not the plaintiff is that the plaintiff resides in a county other than where your affirmant maintains his law office.

The grounds of my belief, as to all matters not stated upon my own knowledge are as follows: review of file.

I affirm that the foregoing statements are true under penalties of perjury.

Dated: New York, New York
May 5, 2015



GREG GARBER, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DIJENARIO MONDELL WILLIAMS,

Plaintiff(s),

-against-

DETECTIVE MATHEW WRIGHT,
THE CITY OF NEW YORK, "JOHN DOE I"
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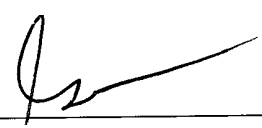
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CERTIFICATION

GREG GARBER, ESQ., an attorney duly admitted to practice law before the Courts of the State of New York, hereby certifies in accordance with 22 NYCRR Part 130-1.1-a of the Rules of the Chief Administrator that to the best of my knowledge, information and belief, which was formed upon personal knowledge of the facts and events that occurred and after a reasonable inquiry under the circumstances, the presentation of the SUMMONS AND VERIFIED COMPLAINT and its contents are not frivolous, as the term is defined in Part 130.

DATED: New York, New York
May 5, 2015

Yours, etc.

By: 

GREG GARBER, ESQ.

Attorney for Plaintiff

60 Madison Avenue - Suite 1005

New York, N.Y. 10010

(212) 779-2740

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SUPREME COURT OF THE STATE OF NEW YORK
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DIJENARIO MONDELL WILLIAMS,

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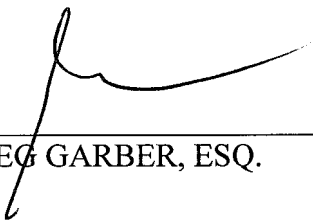
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SUMMONS AND VERIFIED COMPLAINT

GREG GARBER, ESQ.
Attorney for Plaintiff
60 Madison Avenue - Suite 1005
New York, NY 10010
(212) 779-2740

Signature Pursuant to Rule 130.1.1.-a



GREG GARBER, ESQ.
